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Case Number: 22STCV04918 Hearing Date: July 31, 2026 Dept: 509

Cynthia Rios, et al. v. General Motors, LLC

PLAINTIFFS' MOTION FOR ATTORNEY'S FEES, COSTS, AND EXPENSES

MOVING PARTY: Plaintiffs Cynthia Rios and Brittney Rios

RESPONDING PARTY(S): Defendant General Motors, LLC

STATEMENT OF MATERIAL FACTS AND/OR PROCEEDINGS:

Plaintiffs Cynthia Rios and Brittney Rios (collectively, Plaintiffs) allege they purchased a vehicle with a defective transmission from defendant General Motors, LLC (Defendant). Plaintiff brings causes of action for: (1) breach of implied warranty, (2) breach of express warranty, and (3) fraudulent inducement.

On December 1, 2025, the parties announced the settlement.

On April 7, 2026, Plaintiffs filed a memorandum of costs.

On April 10, 2026, Plaintiffs filed this motion to recover attorney's fees. Defendant opposed.

TENTATIVE RULING:

Plaintiffs' Motion for Attorney's Fees is GRANTED in the amount of \$76,125.00.

Plaintiffs' Motion for Costs is GRANTED in the amount of \$8,701.89.

Plaintiffs are ordered to give notice, unless waived.

DISCUSSION:

Motion for Attorney's Fees, Costs, and Expenses

I. Analysis

A. Entitlement to Fees

On November 30, 2025, the parties resolved this case. (Barry Decl. ¶11.) Pursuant to the settlement agreement, Defendant agreed that Plaintiffs were the prevailing party and entitled to attorney's fees, costs, and expenses. (Barry Decl. ¶11.)

Plaintiffs now move for an order awarding attorney's fees and costs totaling \$143,086.86. This amount consists of: (1) \$116,856.50 in attorney fees; (2) \$8,701.89 in costs and expenses; and (3) a 1.15 multiplier enhancement on the attorney fees (or \$17,528.47). (See Mot. at p. 1-2.)

Civil Code, section 1794(d) provides:

(d) If the buyer prevails in an action under this section, the buyer shall be allowed by the court to recover as part of the judgment a sum equal to the aggregate amount of costs and expenses, including attorney's fees based on actual time expended, determined by the court to have been reasonably incurred by the buyer in connection with the commencement and prosecution of such action.

(Civ. Code, § 1794, subd. (d) [emphasis added].)

Here, there appears no dispute that Plaintiffs are the prevailing party under the Song-Beverly Consumer Warranty Act and the Settlement Agreement between the parties allows Plaintiffs to recover their reasonable fees. Accordingly, Plaintiffs are entitled to an award of reasonable attorney fees as the prevailing party.

B. Reasonableness of Fees (Lodestar)

The determination of reasonable amount of attorney fees is within the sound discretion of trial courts. (PLCM Group v. Drexler (2000) 22 Cal.4th 1084, 1095; Akins v. Enterprise Rent-A-Car Co. (2000) 79 Cal.App.4th 1127, 1134.) "The determination of what constitutes a reasonable fee generally 'begins with the 'lodestar,' i.e., the number of hours reasonably expended multiplied by the reasonable hourly rate....'" "[T]he lodestar is the basic fee for comparable legal services in the community; it may be adjusted by the court based on factors including, as relevant herein, (1) the novelty and difficulty of the questions involved, (2) the skill displayed in presenting them, (3) the extent to which the nature of the litigation precluded other employment by the attorneys, (4) the contingent nature of the fee award...." (Graciano v. Robinson Ford Sales, Inc. (2006) 144 Cal.App.4th 140, 154.) In setting the hourly rate for an attorney fees award, courts are entitled to consider the rate of "fees customarily charged by that attorney and others in the community for similar work." (Bihun v. AT&T Information Systems, Inc. (1993) 13 Cal.App.4th 976, 997 [affirming rate of \$450 per hour], overruled on other grounds by Lakin v. Watkins Associated Indus. (1993) 6 Cal.4th 644, 664.) The burden is on the party seeking attorney fees to prove reasonableness of the fees. (Center for Biological Diversity v. County of San Bernardino (2010) 188 Cal.App.4th 603, 615.)

The Court has broad discretion in determining the amount of a reasonable attorney's fee award which will not be overturned absent a "manifest abuse of discretion, a prejudicial error of law, or necessary findings not supported by substantial evidence." (Bernardi v. County of Monterey (2008) 167 Cal.App.4th 1379, 1393-94.) The Court need not explain its calculation of the amount of attorney's fees awarded in detail; identifying the factors considered in arriving at the amount will suffice. (Ventura v. ABM Industries Inc. (2012) 212 Cal.App.4th 258, 274-75.)

It should be noted that state trial court opinions are unpublished and have no precedential value. (Neary v. Regents of Univ. of Calif. (1992) 3 Cal.4th 273, 282.) Likewise, "[w]hile unpublished federal district court opinions are citable, they do not constitute binding authority." (Gong v. City of Rosemead (2014) 226 Cal.App.4th 363, 375.)

1. Reasonable Hourly Rate

Plaintiffs were represented by The Barry Law Firm, which staffed eight attorneys on the matter. The attorney's billed between \$350 and \$695 per hour. (Barry Decl., Exh. 2.)

Plaintiff is seeking 192.4 hours for a total of \$116,856.50. (Mot. at p. 12.) This gives a potential blended hourly rate of \$607.36 per hour. [FN 1] Here, however, under the totality of the circumstances and based upon general prevailing rates in the Los Angeles area for this type of litigation, this Court finds that such a blended rate of \$607.36 per hour is unreasonable given this Court's considerable experience in Song-Beverly cases, many of which culminate with an attorney's fees motion. This determination considers the complexity of the case, the quality of services provided, and the attorneys' experience. Instead, the Court will find a blended rate of \$525 per hour to be warranted in this particular case. An award at this rate comes with the expectation that the attorney works in an efficient manner that reflects the premium paid for his or her services. The Court considers this fact in addressing the reasonableness of the hours expended.

2. Number of Hours Reasonably Expended

Beginning to end, Plaintiff seeks compensation for a total of 192.4 hours on this case. (Mot. at p. 12.) Of those hours, 20.7 hours includes this instant motion, the anticipated response to a motion to tax costs, as well as anticipated expenses at this hearing. [FN 2]

"It is the burden of the challenging party to point to the specific items challenged [within the moving party's verified billing invoice], with a sufficient argument and citations to evidence. General arguments that fees claimed are excessive, duplicative, or unrelated do not suffice." (Lunada Biomedical v. Nunez (2014) 230 Cal.App.4th 459, 488.)

In opposition, Defendant contends the hours purportedly spent by Plaintiffs' counsel are excessive. Defendant highlights multiple entries in the billing records it contends are excessive and duplicative. To a certain degree, this Court agrees with those contentions.

Here, this action was filed in February 2022. The docket reflects Plaintiffs' discovery motions (on which Plaintiff was awarded issue sanctions, but not monetary sanctions), Defendant's unsuccessful motion for summary judgment and successful demurrer, as well as numerous motions in limine. The parties did not settle until the day before trial. However, that said, there was nothing particularly complex or unique about this case. The issues involved were applicable to other consumers' vehicles, thereby triggering economies of scale in terms of Plaintiff's counsel's efficiency in litigating this type of lemon law case. Litigating this matter should not have required anything more than slight factual modification to existing boilerplate. Consistent with these observations, Counsel's billing records reflect a series of repetitive administrative-type tasks. Further, Plaintiffs' counsel attests to bringing attorney's fees motions at least ten times in the last eight months demonstrating proficiency in filing such motions. (Barry Decl. ¶¶25-35.) Therefore, this instant motion should have taken minimal effort given Plaintiff counsel's extensive experience in bringing these motions for attorney fees.

Considering these facts, this Court ultimately agrees that in some instances, the time quoted is excessive under the circumstances. In light of the foregoing discussion, and in view of the totality of the circumstances, the Court finds that the total amount of reasonable attorney's fees in this case, using a lodestar methodology, is \$76,125.00. This was calculated by multiplying the hourly rate of \$525 by 145 hours, which this Court deems to be the reasonable time spent on all tasks in the matter including the time spent in support of this instant motion and the anticipated time spent at the hearing.

Plaintiff seeks a multiplier of 1.15. "The award of a multiplier is in the end a discretionary matter largely left to the trial court." (Yes in My Back Yard v. City of Culver City (2023) 96 Cal.App.5th 1103, 1122 [citation and internal quotations omitted].) The Court in its discretion declines to apply a multiplier given this was a relatively standard Song-Beverly case with no novel or complex issues of law.

Accordingly, Plaintiffs' Motion for Attorney's Fees is GRANTED in the amount of \$76,125.00.

3. Costs and Expenses

Plaintiffs seek costs in the amount of \$8,701.89. (See Memo of Costs.)

First, the Court finds Defendant's opposition to this memorandum of costs untimely. Motions to tax costs must be filed within 15 days' service of the memorandum of costs, plus any applicable extensions based on method of service. (Cal. Rules of Court, rule 3.1700, subd. (b)(1).) The Court may also not extend the period for service of the motion for more than 30 days. (Id., rule 3.1700, subd. (b)(3).) The Court did not extend the period for service and Plaintiff filed and electronically served the memorandum of costs on April 7, 2026, making the motion to tax deadline April 22, 2026. (4/7/26 Memorandum of Costs; Code Civ. Proc., § 1010.6, subd. (a)(3)(B).) Defendant filed its opposition on July 20, 2026, more than 30 days after service of the memorandum of costs.

Second, even if the Court were to consider the motion on its merits, the Court would still deny it. The scope of recoverable costs under Civil Code section 1794, subdivision (d), is broader than the scope of recoverable costs under Code of Civil Procedure, section 1033.5. "[I]n enacting Civil Code section 1794, subdivision (d) the Legislature intended the phrase 'costs and expenses' to cover items not included in 'the detailed statutory definition of 'costs' set forth in Code of Civil Procedure section 1033.5. [Citation.]" (Warren v. Kia Motors Am., Inc. (2018) 30 Cal.App.5th 24, 42.) Thus, Plaintiff's claimed costs are not limited to those set forth in Code of Civil Procedure, section 1033.5 and are recoverable on their face.

As to expert fees, the Court of Appeal in Jensen v. BMW of N. Am., Inc. (1995) 35 Cal.App.4th 112 (Jensen), overruled on other grounds in Rodriguez v. FCA US LLC (2024) 17 Cal.5th 189, explicitly found that recovery of costs under Civil Code section 1794, subdivision (d), includes expert fees. (Jensen, supra, at pp. 137-138.) The Court of Appeal in Jensen noted that Code of Civil Procedure section 1033.5, subdivision (b)(1), allows for expert fees when expressly authorized by law. (Id. at p. 137.) Also, expert fees are not unusual in lemon law cases, so simply because this case never went to trial and no expert depositions were taken does not mean the cost was not reasonably incurred. (See Id. at pp. 137-138; Civ. Code, § 1794, subd. (d).)

Finally, Plaintiff need not present documentary evidence with the memorandum of costs to substantiate those costs. Documentation is only required if the costs have been put in issue via a motion to tax costs. (Jones v. Dumrichob (1998) 63 Cal.App.4th 1258, 1267.) By failing to timely file a motion to tax costs, such costs have not been placed in issue and Plaintiff is not required to provide such documentation.

Accordingly, Plaintiff's Motion for Costs is GRANTED IN ITS ENTIRETY in the amount of \$8,701.89.

IT IS SO ORDERED.

Dated: July 31, 2026 _____

Randolph M. Hammock

Judge of the Superior Court

FN 1 - It is well settled that utilizing a “blended” hourly rate for lodestar methodology is accepted in Song Beverly attorney’s fee motions. (See, e.g, Mikhaeilpoor v. BMW of N. Am., LLC (2020) 48 Cal.App.5th 240.

FN 2 - The Court acknowledges the voluntary reduction in hours sought both in the initial motion (See Mot. at p. 4.) and in reply (See Reply at p. 9.)

Any party may submit on the tentative ruling by contacting the courtroom via email at by no later than 4:00 p.m. the day before the hearing. All interested parties must be copied on the email. It should be noted that if you submit on a tentative ruling the court will still conduct a hearing if any party appears. By submitting on the tentative you have, in essence, waived your right to be present at the hearing, and you should be aware that the court may not adopt the tentative, and may issue an order which modifies the tentative ruling in whole or in part.